4632

Executive Order

Prescribing the manner in which narcotic drugs may be obtained by practitioners and dealers in the Virgin Islands under the Act of Congress approved January 22, 1927, and for other purposes

Superseded by No. 6913

Whereas, the Act of Congress approved January 22, 1927, provides as follows:

"Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That section 2 of the Narcotic Act of Congress, approved December 17, 1914, as amended, be further amended as follows:

Sec. 2. After the last sentence of section 2 add the following: "The President is further authorized and directed to issue such Executive order as will permit those persons in the Virgin Islands of the United States lawfully entitled to sell, deal in, dispense, prescribe, and distribute the aforesaid drugs, to obtain said drugs from persons registered under this Act within the continental United States for legitimate medical purposes, without regard to the order forms described in this section":

Now Therefore, by virtue of the authority conferred upon me by the above quoted provision of the said Act of Congress, it is hereby ordered:

Section 1. That any person lawfully entitled to sell, deal in, dispense, prescribe, or distribute opium or coca leaves, or any compound, manufacture, salt, derivative or preparation thereof, in the Virgin Islands of the United States, may obtain such narcotics as shall be necessary for legitimate medical purposes within those islands by executing a written order therefor upon a duly qualified importer, manufacturer, producer, compounder or dealer in such drugs located in the continental United States, provided, that such order has been first submitted to the Director of Prohibition of the Virgin Islands and bears upon its face the approval of said Director of Prohibition of the Virgin Islands, the official seal of the Government of the Virgin Islands, and the date of such approval.

Section 2. Upon receipt of the order for narcotic drugs from the person in the Virgin Islands ordering such drugs, the Director of Prohibition of the Virgin Islands if he finds that such person is qualified in accordance with the terms of the preceding section, and if he is satisfied that such person is ordering the drugs for legitimate medical purposes only, shall approve the order form by signing a suitable notation on the face thereof, including the date of such approval and impress the seal of the Government of the Virgin Islands thereon, and return same to the person from whom it was received who may then transmit the approved order to the appropriate prospective vendor in the continental United States, who is hereby authorized to furnish and ship the drugs called for in the said order in the same manner and to the same extent that he would be authorized, if the order were properly executed on an official order form submitted by a duly qualified dealer or practitioner in the continental United States under Section 2 of the Act of December 17, 1914, as amended.

Section 3. No order as above described shall be filled by any importer, manufacturer, producer, compounder or dealer in the continental United States if received after two months from the date of approval described in the preceding section. If, for any reason, an approved order is not forwarded to the person in the continental

United States from whom the drug is to be ordered in time to reach such person on or before the expiration of a period of two months after the date of approval, such order shall be returned to the Director of Prohibition of the Virgin Islands for cancellation. The Director of Prohibition of the Virgin Islands shall keep a record of all orders received by him, showing the date the order was received, the date it was approved, if approved, and the date the approved order was returned to the person submitting it. The Director of Prohibition of the Virgin Islands shall submit annually to the Commissioner of Prohibition of the United States, not later than the first of September, a report, covering the preceding fiscal year ending June 30, showing the total amounts and kinds of narcotic drugs for which orders were approved, the total amounts and kinds of narcotic drugs actually received in the Islands during the period, the total amounts and kinds of narcotic drugs actually sold or dispensed in the Islands during the period, and the total amounts and kinds of narcotic drugs on hand in the Islands at the close of the said fiscal year. For the purpose of carrying out the provisions of this order, the Director of Prohibition of the Virgin Islands, with the advice and consent of the Governor of the Virgin Islands is hereby authorized to require such periodical reports concerning narcotic drugs from persons ordering, dealing in, selling, dispensing, prescribing or distributing such drugs in the Virgin Islands as he shall deem appropriate for the purpose.

Section 4. The word person, as used in this order, shall be construed to mean and include a partnership, association, company, or corporation as well as a natural person.

Section 5. The Commissioner of Prohibition of the United States, with the approval of the Secretary of the Treasury, shall make all needful rules and regulations for carrying into effect the provisions of this order in so far as it concerns persons registered under the Act of December 17, 1914, as amended, in the continental United States.

Section 6. Responsibility is placed upon the Governor of the Virgin Islands to enforce the provisions of this order in the said Islands in such a manner that the sale, dealing in, dispensing, prescribing, distribution and use of narcotic drugs therein shall be confined to legitimate medical purposes. Any shipment or transfer of narcotic drugs from the continental United States not in accordance with the provisions and requirements of this order shall subject the parties responsible for such shipment or transfer to the penalties provided in the Act of December 17, 1914, as amended.

CALVIN COOLIDGE

THE WHITE HOUSE,
April 15, 1927.

[No. 4632]

U. S. GOVERNMENT PRINTING OFFICE